

7 & 8 GEO. 6. *Edinburgh Merchant Company* Ch. v.
Endowments (Amendment) Order Confirmation Act, 1944.



CHAPTER v.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936, relating to the Edinburgh Merchant Company Endowments.
[24th May 1944.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament: 26 Geo. 5. & 1 Edw. 8. c. 52.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in Schedule.

2. This Act may be cited as the Edinburgh Merchant Company Endowments (Amendment) Order Confirmation Act 1944. Short title.

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3. In this Order—

“ the principal Order ” means the Edinburgh Merchant Company Interpretation.
Endowments Order 1909 ;

“ certificated teacher ” means a teacher as defined in article 1 (6)
of the Superannuation Scheme for Teachers (Scotland) 1926 ;

“ the Education Board ” shall have the meaning assigned to it
in the principal Order ;

“ the superannuation fund ” shall have the meaning assigned to
it in the principal Order.

4. After the commencement of this Order the Education Board Additional
may without derogation to the powers contained in section 54 (Applica- power to
tion of superannuation fund) of the principal Order but in supplement Education
thereof apply the superannuation fund in payment of superannuation Board.
allowances of which parts have been allocated in accordance with any
regulations made under the provisions of this Order.

5. The Education Board shall with the approval of the Secretary Education
of State make regulations whereby contributors to the superannuation Board to make
fund may allocate parts of their superannuation allowances on terms regulations
and conditions similar to those upon which certificated teachers may relative to
allocate parts of their pensions in accordance with the Teachers' allocation of
Superannuation (Allocation of Pension) Rules (Scotland) 1937 or on superannuation
such other terms and conditions as shall be approved by the Secretary allowances.
of State.

6. The proviso to section 55 (Education Board to make regulations) Confirmation of
of the principal Order shall apply to any regulations made under the regulations.
immediately preceding section of this Order.

7. The provisions of section 56 (Superannuation allowances Allocated
alimentary) of the principal Order shall extend and apply to any allowances to
parts of superannuation allowances allocated in accordance with any be alimentary.
regulations made under the provisions of this Order.

8. All costs charges and expenses of and incident to the preparing Costs of Order.
for obtaining and confirming this Order or otherwise in relation thereto
shall be paid by the Education Board out of the revenues of the
superannuation fund.

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